



January 27, 2026

HOUSE BILL No. 1325

DIGEST OF HB 1325 (Updated January 27, 2026 11:47 am - DI 110)

Citations Affected: IC 20-19.

Synopsis: Special education. Requires the department of education, in collaboration with the Indiana department of health, the department of child services, and the office of the secretary of family and social services to report and make recommendations concerning certain data regarding residential placement, developmental preschool, and special education.

Effective: July 1, 2026.

Pfaff, Clere, Behning, DeLaney

January 6, 2026, read first time and referred to Committee on Education.
January 27, 2026, amended, reported — Do Pass.

HB 1325—LS 7001/DI 152



January 27, 2026

Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

HOUSE BILL No. 1325

A BILL FOR AN ACT to amend the Indiana Code concerning education.

Be it enacted by the General Assembly of the State of Indiana:

1 SECTION 1. IC 20-19-3-41.8 IS ADDED TO THE INDIANA
2 CODE AS A **NEW** SECTION TO READ AS FOLLOWS
3 [EFFECTIVE JULY 1, 2026]: **Sec. 41.8. (a) Not later than October**
4 **1, 2026, the department, in collaboration with the Indiana**
5 **department of health, the department of child services, and the**
6 **office of the secretary of family and social services, shall**
7 **collaborate and submit to the general assembly in an electronic**
8 **format under IC 5-14-16, a report that includes information and,**
9 **as applicable, recommendations on the following:**

10 (1) **Data on the number of students who are using excess cost**
11 **funds for residential placement and the cost each public**
12 **school, including charter schools, expends yearly on required**
13 **payments to access state funds.**

14 (2) **Data on the amount each public school, including charter**
15 **schools, is expending above state provided funding on**
16 **developmental preschool.**

17 (3) **Data on the number of special education students receiving**

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1 homebound instruction in each public school, including
2 charter schools, and the associated costs for each public
3 school, including charter schools.

4 **(4) Data on the costs, including transportation and interpreter**
5 **fees, incurred by each public school, including charter**
6 **schools, for students who are eligible to enroll in, but choose**
7 **not to enroll in, the Indiana School for the Blind and Visually**
8 **Impaired or the Indiana School for the Deaf.**

9 **(b) This section expires January 1, 2027.**



COMMITTEE REPORT

Mr. Speaker: Your Committee on Education, to which was referred House Bill 1325, has had the same under consideration and begs leave to report the same back to the House with the recommendation that said bill be amended as follows:

Page 1, delete lines 10 through 17.

Page 2, delete lines 1 through 14.

Page 2, line 15, delete "(8) Collecting data" and insert "**(1) Data**".

Page 2, line 19, delete "(9) Collecting data" and insert "**(2) Data**".

Page 2, line 22, delete "(10) Collecting data" and insert "**(3) Data**".

Page 2, line 26, delete "(11) Collecting data" and insert "**(4) Data**".

Page 2, delete lines 31 through 42.

Page 3, delete lines 1 through 4.

Page 3, line 5, delete "(d)" and insert "**(b)**".

and when so amended that said bill do pass.

(Reference is to HB 1325 as introduced.)

BEHNING

Committee Vote: yeas 11, nays 0.

